

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN SLOVENIA

INTRODUCTION & FRAMEWORK

Community effort in Slovenia once proved its power at the ballot box. In March 2021 the government pushed amendments to the **Waters Act** through parliament in a shortened procedure, with little public consultation. On paper the changes were technical; in effect, critics warned, they would loosen the rules that kept building away from the water's edge and open Slovenia's rivers, lakes, and short, precious Adriatic coast to hotels, malls, and private development — threatening public access and the drinking water beneath. Slovenians did not accept it. Environmental and civil-society groups — Eko Krog, Balkan River Defence, and others — formed a "**Movement for Drinkable Water**," and, using a right written into their constitution, collected **52,230 signatures**, well past the forty thousand needed, to force a national referendum to strike the law down. On **11 July 2021, in one of the highest turnouts in years, 86.6 percent of voters said no**. The amendments were rejected — a government that had just assumed the presidency of the European Union handed a decisive defeat by its own citizens, defending their water. As one campaigner put it, it was "the awakening of civil society."

A community in Slovenia has, distinctively, two constitutional levers few countries possess, plus the full apparatus of an EU democracy. The first distinctive lever is the **constitutional right to drinking water**: Article 70a, added in 2016 — the first in the European Union — declares water a public good and not a commodity, a powerful legal and moral lever against any project that threatens it. The second is the **rejection referendum**: citizens can gather forty thousand signatures to force a national vote to strike down a law parliament has passed — the very tool that defeated the water amendments. Beyond these, as an EU member, Slovenia is bound by **EU environmental law** — the environmental-assessment, habitats, and water-framework directives, enforceable through the European Commission and the Court of Justice over a national government's head. Major projects must reckon with **environmental impact assessment and the planning and water-protection regulation**; protest, petition, and litigation are lawful. And the **courts** — including a Constitutional Court — and the **open democratic and civil-society channels** genuinely work. But these tools have real limits, and this guide states them plainly. The rejection referendum is precise and demanding: forty thousand signatures force the vote, but the law falls only if a majority vote against it and at least a fifth of the whole electorate does so — a high bar that not every fight can clear. The water victory combined a threat to the water with a process that cut the public out, a combination that galvanised a nation; not every project stirs a national referendum. An ordinary development without that galvanising force relies on the ordinary tools of assessment, EU law, and the courts. And the constitutional water right is most powerful where water itself is threatened. So aim for what these tools can genuinely deliver — a water-threatening law or project struck down or blocked, as the water amendments were; an ordinary project assessed, challenged under EU law, or refused — through the constitutional water right, the rejection referendum where a fight can galvanise one, the EU law, the assessment, and the courts, with the mobilised public and civil society behind them.

The Whole Strategy in One Idea

You win here, as the water movement did, by combining Slovenia's distinctive constitutional tools with the full apparatus of an EU democracy. Where water is threatened, wield the constitutional right to drinking water; where a law must be struck down and a fight can galvanise a nation, force a rejection referendum, as

the Movement for Drinkable Water did; challenge a project under EU environmental law through the Commission and the Court of Justice; hold it to the environmental assessment and water-protection regulation; and litigate in the courts — with the mobilised public and civil society behind it.

Be Honest About Which Fight You're In

The water referendum was a real and stirring win, but honesty about its distinctive lever is the first discipline. The rejection referendum is precise and demanding — forty thousand signatures, then a majority against and at least a fifth of the whole electorate; the water fight cleared that bar because a threat to the water and a process that cut the public out galvanised a nation, and not every project will. An ordinary development relies on the ordinary tools; the constitutional water right is strongest where water is threatened. So aim at the winnable — a water-threatening law or project struck down or blocked, an ordinary project assessed, challenged under EU law, or refused — through the constitutional right, the referendum where a fight can galvanise one, the EU law, the assessment, and the courts.

HOW THE SYSTEM WORKS

Who Actually Decides

A Slovenian decision runs through an EU democracy with two extra constitutional tools. The **government, National Assembly, and their environment and water bodies** decide the laws, permits, and assessments. The **citizens** can force a rejection referendum. The **Constitutional Court and the courts** enforce the constitution — including the right to water — and the law. And the **European Commission and Court of Justice** enforce EU environmental law over the government's head. Map who decides a project's fate, and whether the constitutional water right or a referendum is in reach, before spending a week on it.

How a Project Moves — and Where You Jump In

A project or a law runs through the National Assembly, the environmental assessment, and the water-protection and planning regulation. You enter through the environmental assessment and EU law; through the constitutional right to water where water is threatened; through the rejection referendum where a law must be struck down and a fight can galvanise one, as the water amendments were; and through the courts. Enter early, and — for a water threat that cuts the public out — consider the referendum the water movement used.

Follow the Money and the Permissions

Follow the water: whether a project or law threatens the rivers, lakes, coast, or drinking water the constitution protects. Follow the process: whether the public was cut out, as with the water amendments — a galvanising wrong. Follow the EU law: whether the assessment, habitats, or water directives apply. Follow the permits: the domestic assessment and water-protection regulation. The leverage lies in the constitutional water right, the referendum, the EU law, and the assessment.

Who's Supposed to Be Watching

Slovenia has strong watchers: the environment and water bodies, the National Assembly, the Constitutional Court and courts, a free press, a living civil society, and — above them — the European Commission and Court of Justice enforcing EU law. And the citizens themselves, through the referendum, are the ultimate watchers, as the water fight proved. A case engages these, with the constitutional tools where they apply.

QUICK REFERENCE: SUCCESS RATES

Opposition in Slovenia is genuinely achievable, in an EU democracy with two distinctive constitutional levers, as the water referendum decisively proved. The single most decisive move is **wielding the constitutional right to drinking water and, where a fight can galvanise one, the rejection referendum**, because water enjoys constitutional protection few countries match, and because the referendum can strike down a law outright, as it struck down the water amendments. The constitutional water right and the referendum are the distinctive levers; the EU environmental law the enforcement over the government's head; the assessment and courts the ordinary gates. What the tools deliver is real — a water-threatening law or project struck down, an ordinary project assessed or challenged — though the referendum is demanding and needs a galvanising fight.

STEP 1: TARGET IDENTIFICATION

Ask five questions. **What is the harm?** — the project or law threatening the water, coast, or environment. **Does it threaten water?** — engaging the constitutional right to drinking water. **Is it a law to strike down?** — a candidate for the rejection referendum, if a fight can galvanise one. **Does EU law apply?** — the assessment, habitats, or water directives. **What does an ordinary project need?** — the environmental assessment and water-protection regulation. Pick the fight where the constitutional water right, the referendum, or EU law gives the clearest handle.

STEP 2: DOCUMENTATION

Build the case in layers. **Layer one: the harm** — the project or law's threat to the water, coast, or environment, and any process that cut the public out, documented with the science and the record. **Layer two: the right and the law** — the constitutional right to drinking water, the EU directives, the assessment and water-protection regulation the harm breaches or strains. **Layer three: the tool and the coalition** — whether the referendum is in reach, and the civil society, courts, and EU institutions to engage. A case that grounds a water threat in the constitutional right and EU law, as the water movement did, is one Slovenia's institutions and citizens take seriously.

WHAT TO GATHER, AND WHERE TO FIND IT

Gather the **harm record**: the project or law, its threat to the water or environment, the process behind it. Gather the **right record**: the constitutional right to drinking water, the water-protection regulation. Gather the **EU record**: the assessment, habitats, and water directives that apply. Gather the **referendum record**: the signature threshold and the electorate bar, where a law is to be struck down. Gather the **coalition record**: the civil society, the courts, the EU institutions. Slovenia's open democracy and strong civil society make much of this genuinely obtainable.

STEP 3: BUILDING LOCAL AND NATIONAL SUPPORT

The water fight's lesson is a civil-society coalition that could galvanise a nation. Build with the **affected community**, whose water, coast, or land is at stake; the **environmental and civil-society organisations** — the successors of the water movement's coalition; the **legal advocates** who can bring the constitutional, EU, and court challenges; and the **wider public**, who can be mobilised, as 86.6 percent were, where a fight galvanises. Frame the cause around the water and the public good the constitution protects — the frame

that awakened a nation over the water amendments.

STEP 4: THE CONSTITUTIONAL RIGHT, THE REFERENDUM & THE EU LAW — DEFENDING THE WATER AND THE LAND

Set expectations honestly: the distinctive levers are powerful where they apply, and the ordinary EU-democracy tools govern the rest.

The Constitutional Right to Drinking Water

The distinctive lever is the **constitutional right to drinking water** — Article 70a, water a public good and not a commodity, the first such right in the EU. Wield it against any project or law that threatens the water.

The Rejection Referendum

The second distinctive lever is the **rejection referendum** — forty thousand signatures to force a national vote to strike down a law, as the water amendments were struck down. Where a law must be defeated and a fight can galvanise a nation, this is the decisive tool, demanding as its bar is.

The EU Law, the Assessment & the Courts

As an EU member, Slovenia is bound by **EU environmental law**, enforceable through the Commission and the Court of Justice, and projects must reckon with **environmental impact assessment and the water-protection regulation**, all enforceable in the **courts**. Pursued together — the constitutional water right, the referendum, and the EU law, assessment, and courts — these levers defend the water and the land.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Tailor the case to each audience. **For the constitutional right**: here is a project or law threatening the drinking water the constitution makes a public good. **For the referendum**: here is a law to strike down, and a public to galvanise, as over the water amendments. **For the European Commission**: here is a breach of the EU assessment, habitats, or water directives. **For the environment bodies and courts**: here is a project breaching the assessment or water-protection regulation. **For the public**: here is our water and our coast, at stake. **The golden rule**: wield the constitutional water right and, where a fight can galvanise one, the referendum; enforce EU law through the Commission and Court of Justice; and hold projects to the assessment and courts.

STEP 5: MEDIA STRATEGY

In an open democracy with a strong civil society, media and public mobilisation are decisive, as the water referendum showed. Frame the story around **the water and the public good**: a project or law threatening the rivers, lakes, coast, or drinking water the constitution protects, and — where it applies — a process that cut the public out. Carry it through the Slovenian press, the civil-society networks that awakened a nation, and, for EU-law breaches, the European attention. A few cautions: keep it accurate and grounded in the constitutional right and the assessment; reserve the referendum frame for a law that can genuinely galvanise a nation; and let the water, the public good, and the constitution carry the weight.

EMAILS & LETTERS

Keep every message factual, grounded in the constitutional right or the assessment, and public-good framed.

8A — On the constitutional right to water: set out how a project or law threatens the drinking water the constitution protects.

8B — On the rejection referendum: organise the signature drive to strike down a water-threatening law, as the water movement did.

8C — To the European Commission: report the breach of the EU assessment, habitats, or water directives.

8D — To the environment or water body: identify the project and the assessment and water-protection regulation it needs.

8E — To the courts (through counsel): bring the constitutional, EU, or regulatory challenge.

8F — To a civil-society organisation: coordinate the coalition, as the water movement did.

8G — To the public: mobilise around the water and the public good.

8H — To the press: frame the case around the water and the constitution.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

The first 48 hours: identify the harm and whether it threatens water or is a law to strike down; check the constitutional right, EU law, and referendum options; write the one-page case. **The fastest-moving levers:** the constitutional water right, the rejection referendum where a fight galvanises, and EU law. **Emergency action:** for a water-threatening law rushed through, the referendum, as over the water amendments; for a project, the assessment, EU law, and courts. Throughout, ground it in the water and the public good.

WHEN THE SYSTEM IS TILTED

Even in a strong EU democracy the field can tilt: a government that rushes a law through, as with the water amendments. Recognise it, and lean on the levers the tilt cannot escape — the constitutional right to water, the rejection referendum, EU environmental law enforceable over the government's head, the assessment, and the courts. In Slovenia these genuinely work, as the water fight decisively proved. And accept, honestly, that the referendum is demanding, that not every fight galvanises a nation, and that the constitutional water right is strongest where water is threatened.

WHEN IT'S ACTUAL CORRUPTION — AND WHO BENEFITS

Slovenia is a strong, open, EU rule-of-law democracy, so the more usual challenge is a government rushing a favourable law or project through, as with the water amendments, rather than outright capture. Where a project or law is pushed against the water, the assessment, or EU law, respond through the strong channels the nation genuinely provides: the constitutional right and Constitutional Court, the rejection referendum, the European Commission and Court of Justice, the environment bodies, the free press, and civil society. **On safety:** Slovenia is a safe, rule-of-law EU democracy; the risks here are political and legal, not physical, so the work is open, lawful, and public, as the water movement's was. Keep it accurate and grounded in the

constitutional right and the assessment.

INTEGRATION & TIMELINE

The steps run in parallel. The documented harm feeds the constitutional-right claim, the EU-law complaint, the assessment challenge, and — where apt — the referendum at once; the civil society and public mobilise together; the media carries the water and the public good throughout. A rough timeline: **weeks one to four**, document the harm and the water threat, and engage civil society; **months two onward**, press the constitutional right, EU law, and assessment, and — for a law to strike down — the referendum signature drive; **through the campaign**, as the water fight ran to its July vote, sustain the pressure. The core discipline: water- and public-good-grounded, constitutionally and EU-armed, and civil-society-powered.

FINAL ASSESSMENT

Opposition in Slovenia is genuinely achievable, and in the 2021 water referendum it was decisive and inspiring — a nation striking down amendments that threatened its rivers, lakes, coast, and drinking water, by 86.6 percent, through a citizens' referendum forced by a civil-society movement. This guide has been honest that the referendum is precise and demanding, needing forty thousand signatures and then a majority against and at least a fifth of the whole electorate; that the water fight cleared that bar because a threat to the water and a process that cut the public out galvanised a nation, and not every project will; and that the constitutional water right is strongest where water is threatened. But those honest truths do not diminish what is possible. A community that wields the constitutional right to drinking water, forces a rejection referendum where a fight can galvanise a nation, challenges a project under EU environmental law through the Commission and the Court of Justice, holds it to the environmental assessment and water-protection regulation, and litigates in the courts — with the mobilised public and civil society behind it — can genuinely strike down a water-threatening law and block a harmful project, as the water movement did. The tools are real, and the distinctive strength is a nation that wrote the right to water into its constitution and can, when roused, take a bad law to the ballot box and defeat it.